

26SMCV02496 26SMCV02496

County: los-angeles

Division: Civil Law and Motion

Department: I

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This is a demurrer.

The underlying case is a slip and fall at a Bristol Farms. Plaintiff sues not only Bristol Farms, but also the store manager. The demurrer is

SUSTAINED WITH 30 DAYS' LEAVE TO AMEND. The

store manager is an agent of the person who actually owns, possesses, and controls the premises (Bristol Farms).

True, the manager has a degree of control in that the manager is responsible for clean ups and the like.

But the agent in a negligence case is not personally liable for not cleaning up a dangerous spill or condition.

The situation would be different if the allegation were that this

defendant deliberately created the danger out of some personal ill motive. However, short of that, this is over-pleading. The manager of every store at which someone

slips is not personally liable. Of

course, Bristol Farms remains liable if the elements of the case can be proven. The leave to amend is to allow plaintiff to plead (if plaintiff can do so in good faith) that kind of intentional tort, which the court doubts.